

SENATE BILL 2081

By Watson

AN ACT to amend Tennessee Code Annotated, Title 8;
Title 56; Title 63; Title 68 and Title 71, relative to
step therapy.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 56-7-3501(1), is amended by deleting "stage 4 advanced metastatic cancer, metastatic blood cancer, or treatment of such cancers" and substituting "cancer or the treatment of cancer".

SECTION 2. Tennessee Code Annotated, Section 56-7-3501, is amended by deleting subdivision (10).

SECTION 3. Tennessee Code Annotated, Section 56-7-3502(h)(1), is amended by deleting the subdivision and substituting:

(1) Notwithstanding this section, and except as provided in subdivision (h)(3), a health benefit plan that provides coverage for cancer and associated conditions shall not require use of a step therapy protocol before the health benefit plan provides coverage of an approved prescription drug to an enrollee who has received a diagnosis of cancer.

SECTION 4. Tennessee Code Annotated, Section 56-7-3502(h)(2), is amended by deleting "stage 4 advanced metastatic cancer or metastatic blood".

SECTION 5. Tennessee Code Annotated, Section 56-7-3502(h)(5), is amended by deleting "stage 4 advanced metastatic cancer and metastatic blood".

SECTION 6. Tennessee Code Annotated, Section 56-7-3502(h)(6), is amended by deleting "stage 4 advanced metastatic cancer or metastatic blood" in subdivision (B) and (C).

SECTION 7. The commissioner of commerce and insurance and the commissioner of health may promulgate rules to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 8. This act takes effect January 1, 2027, the public welfare requiring it, and applies to policies or agreements entered into, renewed, or amended on or after that date.